

Calendar Line 2

Case Name: *Mendoza Jaimes v. Kumar Management, Corporation*

Case No.: 24CV445405

This is a putative class action arising from defendant Kumar Management Corporation's alleged wage and hour violations.

Before the Court is the motion to be relieved as counsel by defense counsel Ronald W. Novotny ("Counsel"), which is not opposed. For reasons discussed below, the Court GRANTS the motion.

I. MOTION TO BE RELIEVED AS COUNSEL

A. Legal Standard

Motions to be relieved as counsel are technical and governed by Rules of Court, rule 3.1362 ("Rule 3.1362"). Notice and motion must be directed to the client on Judicial Council Form MC-051. No memorandum is required. (Rule 3.1362(a) & (b)). Counsel must provide a declaration on Judicial Council Form MC-052 stating "in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (Rule 3.1362(c)).

The notice of motion and motion, the declaration, and the proposed order must be served on the client and all parties "by personal service, electronic service, or mail." (Rule 3.1362(d)).

If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:

(A) The service address is the current residence or business address of the client; or

(B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

(Rule 3.1362(d).)

The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order. After the order is signed, a copy of the signed

order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.

(Rule 3.1362(e).)

B. Discussion

Here, Counsel submitted his declaration which states that he believed there has been a breakdown of the attorney-client relationship wherein in Counsel's continued representation of Defendant would be unreasonably difficult. He further states that breakdown in communication, breaches of material terms of the attorney-client agreement, and other conduct has led to the instant motion. (See Rules of Prof. Conduct, Rule 1.16(b)(4) "[A] lawyer may withdraw from representing a client if: (4) the client insists upon taking action that the lawyer considers repugnant or with which the lawyer has a fundamental disagreement...".)

With regard to service, Counsel states that he served Defendant by mail at its last known address with copies of the motion papers served with his declaration. He further states that Defendant has been served by mail at its last known address and he confirmed within the past 30 days that the address is current. The papers were mailed with a return receipt requested. This is sufficient to meet the requirements of Rule 3.1362(d)(1)(A).

Counsel has provided a proposed order on the correct judicial counsel form (MC-053). The proposed order indicates that there is not another hearing scheduled and trial in this action has not been set. The Court's docket reflects the same.

Based on the foregoing, Counsel's motion is GRANTED.

II. CONCLUSION

The motion to be relieved as counsel is GRANTED.

The Court will prepare the final order.

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Calendar Line 3

Case Name: *Lonnie Wong v. Ro Health, LLC, et al.*

Case No.: 24CV452239

This is a putative class and representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Lonnie Wong alleges that defendant Ro Health LLC (“Defendant” or “Ro”) committed various wage and hour violations.

Before the Court is Plaintiffs’ Lonnie Wong and Miriam Wilson’s (collectively, “Plaintiffs”) petition for coordination and application for an immediate stay, which is opposed by Defendant and plaintiff Vianna Monarque. For reasons discussed below, the Court DENIES the motion.

V. BACKGROUND

According to the allegations of the operative first amended complaint (“FAC”), Defendant failed to: pay all wages owed, including minimum and overtime wages; provide compliant meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; provide complete and accurate wage statements; timely pay wages; pay sick wages; pay wages due upon termination; and reimburse for necessary business expenses. Plaintiff Wong also asserted a claim for discrimination under the Fair Employment and Housing Act and a claim for wrongful termination in violation of public policy.

VI. REQUEST FOR JUDICIAL NOTICE

Defendant Ro request judicial notice of the following items:

- (1) The July 27, 2025 order denying Ford’s petition for coordination in *In re Ford Motor Co.*, JCCP No. 4827: Exhibit A;
- (2) The December 1, 2023 minute order in *Southern California Discount Tire Wage and Hour Cases*, JCCP 5296 denying Barajas’ petition for coordination: Exhibit B;
- (3) The October 23, 2025 order in *Jose Francisco Hernandez v. GMRI, Inc., et al.*, JCCP No. 5402 denying plaintiffs’ petition for coordination: Exhibit C; and
- (4) The October 9, 2025 order in *Jorge Rivera v. National Street and Shipbuilding Company, et al.*, JCCP No. 5393 denying Carroll’s petition for coordination: Exhibit D.

Evidence Code section 452, subdivision (d), permits judicial notice of records of any court of this state or any court of record of the United States or of any state of the United States. (Code Civ. Proc., § 452, subd. (d).) Exhibits A-D are court records, therefore they are